IN THE NATIONAL COMPANYLAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

ITEM No. 01
(CAA)-183(PB)/2017

IN THE MATTER OF:
KPS Infraproject Limited and
Fortune Proptech Pvt. Ltd. .... Applicant/petitioner

Order under Section 230-232

Order delivered on 06.06.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENTS:
For the Petitioner -
For the ITD Mr. Shubham Pandey & Ms. Easha Kadian, Advs. for Ms. Lakshmi Gurung, Standing Counsel for Income Tax Department

ORDER

During the course of dictation of order, the Regional Director's report has been found to be inadequate and clarification on the following issues is required:

1. The status of six struck-off companies and its effect on the Scheme since the view of the RD has not been placed on record;
2. The effect of share transfer from 31.03.2015 to 31.03.2016 and execution of transfer deed in favour of respective directors particularly when the purchasers did not transfer deeds through the company for transfer of shares.

Let the needful be done at the earliest. Parties be informed.
List the matter on 22.07.2019.

Sd/-
(M.M.KUMAR)
PRESIDENT

Sd/-
(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

06.06.2019
Ritu Sharma